

Date Of Decision: 05.12.2024 vs State Of H.P. & Ors on 5 December, 2024

Author: Virender Singh

Bench: Virender Singh

2024:HHC:13961

IN THE HIGH COURT OF HIMACHAL PRADESH

SHIMLA

Cr.MMO No.1239 of 2024

Date of Decision: 05.12.2024

Arvind Dhiman

...Petitioner

Versus

State of H.P. & Ors.

..Respondents

Coram:

The Hon'ble Mr. Justice Virender Singh, Judge.

Whether approved for reporting?1

For the Petitioner

:

Mr. Amit Singh Chandel and
Abhinav Mehta, Advocates.

For the Respondents :

Mr. Tejasvi Sharma, Mr. H.S.
Rawat and Mr. Mohinder
Zharaiick, Additional Advocates
General with Mr. Rohit Sharma,
Deputy Advocate General, for
respondent No.1/State.
Mr. Vikrant Thakur, Mr.
Sushant Vir Singh Thakur
and Shubham Singh Guleria,
Advocates, for respondent
No.2.

Virender Singh, Judge (Oral)

Petitioner has filed the present petition, under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, (hereinafter referred to as 'BNSS'), for quashing of FIR No.183/2020, dated 26.09.2020 (hereinafter referred to as the FIR, in question), registered with Police Station, Kangra, District Kangra, H.P., under Sections 498-A, 504 and 506 of Whether reporters of Local Papers may be allowed to see the judgment?

2024:HHC:13961 the Indian Penal Code, (hereinafter referred to as the 'IPC') as well as, the proceedings resultant thereto, which are stated to be pending before the Court of learned Additional Chief Judicial Magistrate, Kangra, (hereinafter referred to as the 'trial Court').

2. The relief of quashing has been sought on the basis of the compromise, effected between the parties.

3. According to the petitioner, on the basis of a complaint lodged by respondent No.2, FIR No.183/2020, dated 26.09.2020, was registered under Sections 498-A, 504 and 506, IPC, against him.

4. After registration of the FIR, the police has conducted the investigation and submitted the final report, which is now pending adjudication, before the learned trial Court.

5. It is the case of the petitioner that respondent No.2 was married with the petitioner. However, due to non- compatible temperament, their marriage was dissolved under Section 13(b) of the Hindu Marriage Act, vide order dated 17.01.2024, by the competent Court. Now, matter with regard to FIR in question, has been compromised between the parties, vide compromise Annexure P-2.

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6. On the basis of the said compromise, a prayer has been made to allow the petition, as prayed for, by quashing the FIR, in question, as well as, proceedings resultant thereto, pending before the learned trial Court.

7. When put to notice, respondent No.1-State has filed the status report, mentioning therein the manner, in which, the FIR, in question, has been registered, at the instance of respondent No.2, as well as, the manner, in which, the investigation has been conducted, by the police, in this case.

8. Keeping in view the pleadings, as well as the stand taken by respondent No. 2, this Court is of the view that petitioner and respondent No.2, though married each other, but, compelled by the circumstances, both of them were litigating with each other. Due to this fact, respondent No. 2 had lodged the case against the petitioner. The police has conducted investigation and filed report under Section 173(2) Cr. P.C., which is still pending adjudication before the learned trial Court.

9. Now, with the intervention of the respectables of the society, the petitioner and respondent No. 2 have settled their inter-se dispute and have entered into the compromise.

2024:HHC:13961 The terms and conditions of the compromise have been reduced into writing and annexed with the petition, as Annexure P-2.

10. The primary purpose of law is to maintain peace in the society and when, the parties to the marriage, i.e. petitioner and respondent No. 2, have decided to part their ways by settling all the inter-se disputes, then, the continuation of the criminal proceedings, arising out of FIR in questions, lodged by respondent No. 2, would certainly amount to abuse of the process of law.

11. No doubt, the criminal machinery has been put into motion by respondent No. 2, by lodging the FIR in question, against the petitioner, but, now, he has compromised the matter with the

petitioners.

12. The terms and conditions, which have been agreed upon by the parties, in order to settle all the disputes, should be honoured by the Court, as, no useful purpose would be achieved, by keeping the proceedings alive.

13. Acceptance of the compromise will also save the precious judicial time of the learned trial Court, as, the learned trial Court will be in a position to devote such time for deciding some other serious disputes, pending before it.

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14. Moreover, this Court is satisfied with the genuineness of the compromise, Annexure P-2, entered into between the parties, as, respondent No.2, while appearing before this Court has categorically stated that she was not under any pressure for entering into the compromise.

15. Considering all these facts, the petition is allowed and FIR No.183/2020, dated 26.09.2020, registered with Police Station, Kangra, District Kangra, H.P., under Sections 498-A, 504 & 506 IPC, as well as, the proceedings resultant thereto, pending before the learned trial Court, are ordered to be quashed.

16. The Compromise Deed, Annexure P-2, and the statements of the parties, recorded before this Court shall form part of the judgment.

17. Pending miscellaneous applications, if any, shall also stand disposed of accordingly.

(Virender Singh) Judge December 05, 2024 (subhash)